

STATE OF NEW YORK

3535--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 28, 2025

Introduced by M. of A. SOLAGES -- read once and referred to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to establishing a highway safety corridor on the Southern State Parkway

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 article 34-E to read as follows:

ARTICLE 34-E

SOUTHERN STATE PARKWAY HIGHWAY SAFETY CORRIDOR

Section 1300. Legislative intent.

1301. Definitions.

1302. Southern State Parkway highway safety corridor.

1303. Traffic control signs.

1304. Enhanced traffic enforcement.

1305. Reporting requirements.

11 § 1300. Legislative intent. The legislature hereby finds and declares
12 that the Southern State Parkway has experienced a significant number of
13 speeding-related crashes and reckless driving incidents, injuries, and
14 fatalities, creating substantial risks to motorists and the general
15 public. The legislature further finds that the New York State Police
16 have undertaken targeted traffic safety initiatives, including "Opera-
17 tion Southern Shield," to increase enforcement and reduce dangerous
18 driving behavior along the Southern State Parkway. The legislature
19 therefore declares that designating a highway safety corridor along a
20 portion of the Southern State Parkway, together with enhanced enforce-
21 ment, traffic safety monitoring, and public notification measures, is
22 necessary to protect the health, safety, and welfare of the public.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD07012-06-6

§ 1301. Definitions. As used in this article:

1. "Commissioner" shall mean the commissioner of the department of transportation.

2. "Southern State Parkway highway safety corridor" shall mean the portion of the Southern State Parkway between exit seventeen and exit thirty-one.

3. "Highway safety corridor", or "corridor", shall mean a section of a highway which has a dangerous traffic and accident history necessitating increased penalties and enhanced enforcement to mitigate future incidents.

§ 1302. Southern State Parkway highway safety corridor. The area of the Southern State Parkway between exit seventeen and exit thirty-one is hereby designated a highway safety corridor for the purposes of this article.

§ 1303. Traffic control signs. 1. The commissioner shall install and maintain signage identifying the beginning and the end of the Southern State Parkway highway safety corridor, pursuant to this article.

2. A sign reading "HIGHWAY SAFETY CORRIDOR - FINES DOUBLED" shall be installed at the beginning of the corridor and after each interchange along such corridor, pursuant to this article.

3. A sign reading "END HIGHWAY SAFETY CORRIDOR" shall be installed immediately at the end of the corridor.

4. All signage pursuant to this section shall conform to the manual on traffic control devices maintained pursuant to section one thousand six hundred eighty of this chapter.

§ 1304. Enhanced traffic enforcement. The superintendent of state police, in consultation with the commissioner, may provide enhanced enforcement activities within the Southern State Parkway highway safety corridor, including enforcement initiatives consistent with the objectives of the state police "Operation Southern Shield" initiative.

§ 1305. Reporting requirements. 1. The commissioner, in consultation with the superintendent of the state police, shall prepare and publish an annual report regarding the Southern State Parkway highway safety corridor. Upon completion, such report shall be made available to relevant stakeholders, including but not limited to the Nassau County Police Department, local police departments, and local, state, and federal transportation authorities.

2. Such report shall include, but not be limited to:

(a) the number of crashes, including the severity of such crashes occurring within the corridor;

(b) the number of injuries and fatalities occurring within the corridor;

(c) the number and type of traffic citations issued within the corridor;

(d) traffic volume and speed data, where available;

(e) enforcement activities conducted within the corridor;

(f) general trends observed pertaining to the aforementioned collected data; and

(g) recommendations for roadway safety improvements, where applicable.

§ 2. Subdivision (f) of section 1180 of the vehicle and traffic law, as amended by chapter 432 of the laws of 1997, is amended to read as follows:

(f) Except as provided in subdivision (g) of this section and except when a special hazard exists that requires lower speed for compliance with subdivision (a) or (e) of this section or when a lower maximum speed limit has been established, no person shall drive a vehicle

1 through a highway construction or maintenance work area at a speed in
2 excess of the posted work area speed limit or through a highway safety
3 corridor in excess of the posted highway safety corridor speed limit.
4 The agency having jurisdiction over the affected street or highway may
5 establish work area speed limits or highway safety corridor speed limits
6 which are less than the normally posted speed limits; provided, however,
7 that such normally posted speed limit may exceed the work area speed
8 limit or highway safety corridor speed limit by no more than twenty
9 miles per hour; and provided further that no such work area speed limit
10 or highway safety corridor speed limit may be established at less than
11 twenty-five miles per hour.

12 § 3. Subdivision 1 of section 1809-d of the vehicle and traffic law,
13 as added by chapter 223 of the laws of 2005, is amended to read as
14 follows:

15 1. Notwithstanding any other provision of law, whenever proceedings in
16 an administrative tribunal or court result in a finding of liability or
17 conviction for a violation of paragraph two of subdivision (d) or subdivi-
18 sion (f) of section eleven hundred eighty or article thirty-four-E of
19 this chapter or any other statute, local law, ordinance or rule involv-
20 ing the maximum speed limits in highway construction [~~or~~] areas, mainte-
21 nance work areas, or highway safety corridors, there shall be levied a
22 mandatory surcharge in addition to any other sentence, fine or penalty
23 otherwise permitted or required, in the amount of fifty dollars. Such
24 surcharge shall not be deemed a monetary penalty for the purposes of
25 section two hundred thirty-seven of this chapter or section 19-203 of
26 the administrative code of the city of New York.

27 § 4. This act shall take effect on the ninetieth day after it shall
28 have become a law. Effective immediately, the addition, amendment and/or
29 repeal of any rule or regulation necessary for the implementation of
30 this act on its effective date are authorized to be made and completed
31 on or before such date.